P. WARNER SENIOR SURVEYOR (C)
M. J. CURTIS

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Land Survey Act 1980

Act No. 14 of 1980

LEGAL NOTICE NO. 33 OF 1982

Land Survey Act 1980 (Commencement) Notice

In exercise of the powers conferred by Section 1 of the Land Survey Act 1980, I,

Nehemia Sekhonyana 'Maseribane

Minister of the Interior, appoint 3rd May, 1982 as the commencement date for the Land Survey Act 1980.

N. S. 'Maseribane,
Minister of the Interior.

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The Land Survey Act 1980

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Land Survey Act 1980

ACT NO. 14 OF 1980

[*Date of Assent: 15-9-80*]

[*Date of Commencement: See section1*]

ACT

To make provision for the licensing and professional conduct of Land Surveyors, for regulating the making of land surveys and for connected purposes.

PART I

Preliminary

Short title and commencement

1. This Act may be cited as the Land Survey Act and shall come into operation on a day to be appointed by the Minister by notice in the Gazette.

Interpretation

2. In this Act unless the context otherwise requires —

"assistant" means a person not being a surveyor who is engaged on survey work directly under the control of a surveyor;

"board" means the Land Surveyors' board established pursuant to the provisions of section 4;

"Chief" means a Principal Chief, Ward Chief, Chief or headman whoever has first jurisdiction over the area where the land the subject of a survey is situated;

"licensed surveyor" means a surveyor licensed under this Act;

"Minister" means the Minister responsible for survey matters;

"owner" means the person who holds title to land under the Land Act 1979.

"parastatal organisation" means any statutory corporation wholly or partly funded by the State or where control and management is subject to general directions of policy from the State or a Minister;

"plan" includes an unpublished map, machine or hand drawn plot, diagram, aerial photograph or a mosaic compiled from aerial photographs approved as suitable for survey purposes;

"professional misconduct" includes wilfully making or causing to be made any falsification in any document, state-

ment or mathematical figure related to any survey made under this Act.

"public survey" means any survey made by the Chief Surveyor for the purpose of defining the boundaries of any land;

"survey" means a survey made by a licensed surveyor defining the boundaries of land including one or more pieces thereof;

"surveyor" means a licensed surveyor or an officer in the public service authorised by the Chief Surveyor to carry out surveys; and

"survey mark" means any mark permanent or otherwise placed, implanted, drilled, erected or constructed by a surveyor during the course of any survey made under this Act.

Chief Surveyor and his duties

3. (1) There shall be a Chief Surveyor whose office shall be an office in the Public Service and he shall, subject to this Act —

(a) direct and control all public surveys;

(b) supervise and control all other surveys;

(c) examine all general and particular plans of surveys and authenticate such surveys if satisfied that they have been carried out under the Act;

(d) take charge of and preserve all survey records;

(e) cancel or amend any survey found to be incorrect, outdated or inadequate; and

(f) prepare, certify and issue at the request of any person upon payment of the prescribed fees, copies of plans and documents held by him which are available to the public.

(2) The Chief Surveyor shall be the authority for the preparation and publication of the official maps of Lesotho and no other person shall, without the licence in writing of the Chief Surveyor, make use of any material which has been prepared or published in official maps in the preparation or publication of any other maps.

(3) The Chief Surveyor shall be responsible for —

(a) co-ordinating and controlling all aerial photography of land in Lesotho;

(b) the custody of all official aerial photographs, print laydowns, film negatives and flight diagrams relating to the aerial photography of any land in Lesotho and it shall be the duty of every public officer having custody or control of any aerial photograph, print laydown, film negative and flight diagram to take all necessary steps to deliver them to the Chief Surveyor;

and shall hold the copyright of all official aerial photography.

The Land Surveyors' Board

Establishment of the Land Surveyors' Board

4. (1) There is established a Board, to be known as the Land Surveyors' Board consisting of the Chief Surveyor, who shall be the Chairman of the Board, and three other persons appointed by the Minister and who shall (if practicable) be surveyors recognised to practise in Lesotho.

(2) A member of the Board appointed by the Minister shall hold office for two years, and may at any time resign his appointment by notice in writing given to the Minister.

(3) The Board may, from time to time, appoint a secretary who shall hold office during the pleasure of the Board.

Duties of the Board

5. It shall be the duty of the Board —

(a) to grant to persons duly qualified therefore in accordance with this Act, licences to practise land surveying in Lesotho;

(b) to provide for examinations (where necessary) to be taken by applicants for such licences;

(c) to keep a register of all licensed surveyors in accordance with section 8;

(d) to take disciplinary proceedings against licensed surveyors in accordance with this Act;

(e) to hear and determine any dispute between any licensed surveyor and his client as to the fees charged by the licensed surveyor or between any licensed surveyor and the Chief Surveyor; and

(f) to perform such other functions as are prescribed by this Act.

Grant of licence

6. The Board shall not grant a licence to practise land surveying under this Act to any person unless such person has passed such examination as the Board may from time to time prescribe.

Form of licence Form "A" Schedule

7. The grant of a licence to practise land surveying shall be in Form "A" in the Schedule.

Register of licensed surveyors

8. The Board shall cause a register to be kept which shall contain the names, addresses and qualifications of all persons to whom licences have been granted, the date upon which each such licence was granted and any other particulars which may be prescribed.

Disciplinary powers of the Board

9. (1) Where, after due inquiry by the Board, a licensed surveyor has been found to have been guilty of professional misconduct, or, having been convicted of a criminal offence, is found by the Board to be unfit to practise, the Board may —

(a) revoke the licence granted to such licensed surveyor; or

(b) suspend the licence for a period not exceeding three years; or

(c) impose a fine not exceeding M250 on such licensed surveyor; or

(d) reprimand such licensed surveyor.

(2) Upon any inquiry held by the Board under subsection (1), the person whose conduct is being inquired into shall be afforded an opportunity of being heard, either in person or assisted by legal counsel.

Form "B" Schedule

(3) For the purpose of proceedings at any inquiry held by the Board, the Board may administer oaths and affirmations and may by summons drawn up in Form "B" in the Schedule require the attendance of persons as witnesses and the production of books, documents, plans and other survey records.

(4) Any person who having received a summons fails to attend, or fails to produce any books, documents, plans and other survey records, shall be guilty of an offence and on conviction be liable to a fine of M100 and to one month's imprisonment.

Appeal to the High Court

10. Any person aggrieved by a decision of the Board made under section 9 or under section 19 (4), may within two months after the date of the decision, appeal to the High Court against the decision and, on any such appeal, the High Court may give such directions in the matter as it thinks proper including directions as to costs of the appeal, and no appeal shall lie from an order of the High Court under this section.

Grant of a new licence

11. Where an order has been made for the revocation of the licence granted to any person or for suspending such a licence, the Board may either of its own motion or on the application of the person so concerned, and in either case after holding such inquiry as the Board thinks fit, grant a new licence and cause the name of that person to be restored to the register.

Notice of grant of licence etc. to be published

12. Notice of a grant, revocation or suspension of any licence, or of the termination of the suspension thereof, shall be published in the Gazette.

Disputes over application of regulations and general directions

13. (1) If a dispute arises between a licensed surveyor and the Chief Surveyor over the application of either any regulation or a general direction issued under section 16(1) either party may refer the matter to the Board to hear and determine such dispute and its decision shall be final.

(2) In the case of a dispute under subsection (1), the Chairman shall stand down remaining a member of the Board and an interim Chairman shall be elected by the members for the purposes of hearing and determining the dispute.

PART III

The Conduct of Surveys

Duties of licensed surveyors and non-liability of the Government

14. (1) Every licensed surveyor shall carry out every survey undertaken by him in such manner as will ensure that the survey accords in all respects with this Act and shall be responsible for the correctness and completeness of every survey carried out by him or under his supervision.

(2) Neither the Government nor any public officer shall be liable for any defective survey, or any work appertaining thereto, performed by a licensed surveyor, notwithstanding that any plan, relating to such survey, has been authenticated or approved in accordance with this Act or used to support any document of title to land or deed registered under any law.

The Chief Surveyor's directions

15. (1) Any survey of land made for the purposes of this Act, shall be carried out in accordance with general directions issued by the Chief Surveyor.

(2) Before carrying out any survey, a licensed surveyor shall obtain from the Chief Surveyor all available information in respect of any previous survey of the land to be surveyed and of adjoining lands and any specific instruction relating to the survey.

(3) Applications for survey information shall be in writing and the prescribed fee shall be paid.

Only surveyors to carry out certain surveys

16. (1) No person, other than surveyor shall —

(a) survey any land for the purpose of demarcating the boundaries thereof and preparing any plan which is attached to any document purporting to confer, declare, transfer, cede, limit, extinguish or otherwise deal with or affect any right, title or interest, whether vested or contingent to, in or over any land, being a document which is required to be registered or is ineffectual until registered under any law for the time being in force relating to the registration of transactions in or title to land; or

(b) perform any survey which affects or may affect the definition of the boundaries or the location of survey marks, of any land the subject of a grant of title or to be granted under any law.

(2) Any person who contravenes any of the provisions of subsection (1) shall be guilty of an offence and on conviction be liable to a fine of five hundred Rands and to six month's imprisonment.

Powers of entry and compensation for damage

17. (1) The Chief Surveyor and any person generally or specially authorised by the Chief Surveyor in writing and any surveyor may, for the purpose of performing any duties imposed by or in pursuance of this Act or any other law —

(a) enter upon any land with such assistants, animals, vehicles, appliances and instruments as are necessary for or

incidental to the performance of such duties;

(b) fix, place or set up any survey mark, whether permanent or temporary, upon such land;

(c) make use of brush wood, water, stone, sand, gravel, clay or other materials of a like nature upon which no work has been expended by the owner or occupier of the land, without tender, or payment by way of compensation, to any person;

(d) cut and remove or destroy all such brushwood, branches, growth (not being a tree within a woodlot, forestry area or forest reserve) or vegetation of any kind whatsoever in the immediate vicinity of any survey mark as may interfere or be likely to interfere with the functions of such survey mark.

(2) Prior to the exercise of any of the powers conferred by this section, reasonable notice shall be given to the owner or occupier of the land and in the case of land which is the subject of registrable title under the Land Act 1979, to the Chief and where the owner or occupier cannot be found, a notice shall be placed in a conspicuous place on the land.

(3) Where in the exercise of the powers conferred by this section, damage is caused which could have been avoided, the owner or occupier shall be entitled to claim and receive compensation for such damage, but no claim for damages shall be entertained unless made within two months after the date it was committed and in the event of disagreement over the amount of damages the matter shall be refered to a magistrate for assessment.

(4) Any person who in any manner whatsoever prevents, obstructs or impedes the exercise of any powers conferred by subsection (1) or who moves, obscures, damages or destroys any survey mark lawfully placed on any land shall on conviction be liable to a fine of M100 and to one month's imprisonment.

PART IV

General

Plans to be deposited

18. (1) A licensed surveyor carrying out any survey under this Act, shall send to the Chief Surveyor all plans, field notes and computations relating thereto, and all such plans, field notes and computations shall become the property of the Government.

(2) Upon receipt of the documentation referred to in subsection (1), the Chief Surveyor may authenticate the survey and, upon authentication shall notify the licensed surveyor in writing that the survey has been authenticated, supplying him free of cost, with copies of plans if necessary, to enable him to collect survey fees.

(3) The Chief Surveyor shall not use any of the documentation referred to in subsection (1) for —

(a) any purpose relating to the grant of any right to use or occupy the land the subject of the survey;

(b) any dealing in that land by the owner,

unless the licensed surveyor consents thereto in writing, but he may use any information from the survey for updating any topographic map and he may also, if satisfied that the licensed surveyor has authorised the use of the survey by any person, use the documentation for any official purpose.

(4) No plan deposited with the Chief Surveyor under subsection (1) or issued by him under subsection (2) shall be altered or amended in any way without the authority of the Chief Surveyor.

Correction of errors

19. (1) The Chief Surveyor may at any time undertake such field and office checks on the survey work of a licensed surveyor as he thinks fit.

(2) The Chief Surveyor may by notice in writing, instruct any licensed surveyor to correct at his own expense within a time specified in such notice, any error made by him in the survey represented by the plan submitted for authentication.

(3) In the event of the licensed surveyor refusing or neglecting within the time specified, to correct the error, it shall be lawful for the Chief Surveyor to undertake the correction and to recover the whole cost thereof from the licensed surveyor concerned.

(4) If the licensed surveyor refuses or neglects to pay the costs of the correction referred to in subsection (3) within one month of the same having been demanded of him, the Chief Surveyor may report the facts to the Board for disciplinary action and after due inquiry the Board may order the licensed surveyor to pay the cost of correction to the Chief Surveyor; and if the licensed surveyor refuses or neglects to comply with the order within one month after the date of the order, the Board may, suspend the licence of the licensed surveyor until the cost of correction has been paid, or for a period not exceeding three years, whichever it thinks fit.

Authentication of survey

20. (1) No land shall be deemed to have been surveyed or resurveyed until the plan thereof and the survey has been authenticated by the Chief Surveyor.

(2) Every plan authenticated by the Chief Surveyor under subsection (1) shall in any court of law or in any proceeding of a legal or quasi-legal nature, be conclusive evidence of the survey information comprised therein, unless and until such plan is cancelled by the Chief Surveyor by virtue of section 21.

(3) Every plan purporting to bear the signature of the Chief Surveyor for the purpose of subsection (1) shall be deemed to be properly authenticated unless and until the contrary is proved.

Chief Surveyor may cancel authentication of plan

21. (1) Where in the case of a document to which an authenticated plan is attached, or in which reference to such a plan is made —

(a) the plan is found to be inaccurate by reason of any error or omission in the survey; or

(b) the plan does not conform with the terms and conditions subject to which permission, for the survey or subdivision of the land to which the plan relates, has been given by the proper authority, the Chief Surveyor may cancel the authentication of such plan and may recall any copies which may have been issued and in every case the provisions of section 19 shall apply.

(2) The Chief Surveyor shall forthwith upon the cancellation of the authentication of any plan notifying in writing —

(a) the owner of the land to which such plan relates;

(b) the surveyor by whom the survey was carried out;

(c) the Commissioner of Lands; and

(d) the Registrar responsible for the registration of any document relating to that land.

Aerial surveys

22. (1) Any person who intends to carry out aerial photography of Lesotho for use in mapping or any other similar purpose shall, before carrying out the same, give to the Chief Surveyor in writing not less than one month's notice of his intention so to do.

(2) Any person who has carried out any such aerial photography shall, if the Chief Surveyor so requires in writing —

(a) arrange for the photographic development of the aerial photography within Lesotho;

(b) retain at all times such aerial photographs and photographic film within Lesotho;

(c) produce to the Chief Surveyor for his inspection all of the photographs thereby produced or such of them as the Chief Surveyor may specify;

(d) deposit with the Chief Surveyor all or any of the photographs thereby produced together with all or any of the film negatives or positives from which the photographs were produced;

(e) supply to the Chief Surveyor, at the Chief Surveyor's cost, such copies and flight diagrams as the Chief Surveyor may require of such photographs and films.

(3) It is hereby declared that any aerial photography made in Lesotho by or on behalf of the Government of Lesotho, by any government agency or by any parastatal organisation shall be considered as official aerial photography.

Recovery of monies due

23. Any sum due under this Act may be sued for and recovered by the Chief Surveyor by action in any court of competent jurisdiction.